

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE CHARLOTTE N. SWEENEY

Civil Action:	21-cv-02444-CNS-SKC	Date: September 11, 2023
Courtroom Deputy:	Julie Dynes	Court Reporter: Sarah Mitchell

<i>Parties</i>		<i>Counsel</i>
ERIC RAY	Plaintiff	<i>Joseph Sirchio</i>
v.		
AUTO-OWNERS INSURANCE COMPANY	Defendant	<i>Hannah McCalla</i>
		<i>Evan Stephenson</i>

COURTROOM MINUTES

JURY TRIAL DAY ONE

Court in Session: 8:02 a.m.

Appearance of counsel. Also present at defense table is client representative Chris Hoag.

Discussion held on exhibits, jury instructions, and trial timing.

8:09 a.m. Court in recess.

8:39 a.m. Court in session.

Twenty-nine (29) potential jurors are brought to the Court.

Attorneys and parties are introduced.

Court's statement of the case to jurors.

Fifteen jurors called to the jury box.

All jurors sworn for voir dire.

Court's preliminary remarks to jurors.

8:51 a.m. Voir dire of the jury panel by the Court.

Excused for cause:

1. 100516010
2. 100511574

Additional jurors called to replace excused jurors with continued voir dire by the Court.

9:43 a.m. Voir dire of the jury panel by Mr. Sirchio.

10:11 a.m. Voir dire of the jury panel by Mr. Stephenson.

10:42 a.m. Court in recess.

10:55 a.m. Court in session – jury panel present.

10:56 a.m. Continued voir dire of the jury panel by Mr. Stephenson.

Challenges for cause:

1. 100501302

11:11 a.m. Additional juror called to replace excused juror, voir dire of additional juror by the Court.

11:13 a.m. Voir dire of additional juror by Mr. Sirchio.

11:15 a.m. Voir dire of additional juror by Mr. Stephenson.

Plaintiff's Peremptory Challenges:

1. 100487001
2. 100484254
3. 100486965

Defendant's Peremptory Challenges:

1. 100518051
2. 100505763
3. 100485935

11:22 a.m. Nine jurors sworn to try the case:

1. 100488034
2. 100489616
3. 100488729
4. 100495149
5. 100517653
6. 100503854
7. 100473087
8. 100478501
9. 100507762

11:22 p.m. Court in recess.

11:37 a.m. Court in session - jury escorted in.

The Court instructs the jury on its practices for trial.

11:56 a.m. Opening statement by Mr. Sirchio.
Exhibit 2 is admitted.

ORDERED: Exhibits 1, 32, 33, 63, 107, 108 and 109 are admitted.

12:18 p.m. Opening statement by Mr. Stephenson.

Jury excused.

Discussion held on witness testimony.

12:50 p.m. Court in recess.

2:02 p.m. Court in session - jury escorted in.

Plaintiff's witness, Dr. Pamela Knight, called and sworn.

2:05 p.m. Direct examination of Dr. Knight by Mr. Sirchio.
Exhibits 28, 30, 35, 40 and 55 are admitted.

2:55 p.m. Cross examination of Dr. Knight by Mr. Stephenson.

3:39 p.m. Court in recess – jury escorted out.

3:55 p.m. Court in session - jury escorted in.

3:56 p.m. Continued cross examination of Dr. Knight by Mr. Stephenson.
Exhibits 50 and 61 are admitted.

4:11 p.m. Redirect examination of Dr. Knight by Mr. Sirchio.

Plaintiff, Eric Ray, called and sworn.

4:15 p.m. Direct examination of Mr. Ray by Mr. Sirchio.

Jury excused, to return tomorrow at 8:30 a.m.

Discussion held on exhibit presentation and trial timing.

Court in Recess: 4:58 p.m.

Trial continued.

Total time in Court: 06:30